

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
GABRIEL MALDONADO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
WILLIAM SCHUMACHER, Shield No. 04618, POLICE
OFFICER ANDRE OHARA, Shield No. 9483, POLICE
OFFICER ANTHONY WAITE, Shield No. 9649,
SERGEANT ROBERT MARTINEZ, Shield No. 1369, and
POLICE OFFICERS JOHN DOES #s 1-4 (names and
numbers of whom are unknown at present),

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 24, 2021

Yours, etc.

/s/

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER WILLIAM SCHUMACHER, Shield No. 04618, 75th Precinct, 1000
Sutter Ave, Brooklyn, NY 11208
POLICE OFFICER ANDRE OHARA, Shield No. 9483, Gun Violence Suppression
Division, Zone 1
POLICE OFFICER ANTHONY WAITE, Shield No. 9649, 67th Precinct Detective
Squad, 2820 Snyder Ave, Brooklyn, Ny 11226
SERGEANT ROBERT MARTINEZ, SHIELD NO. 1369,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

GABRIEL MALDONADO,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
WILLIAM SCHUMACHER, Shield No. 04618, POLICE
OFFICER ANDRE OHARA, Shield No. 9483, POLICE
OFFICER ANTHONY WAITE, Shield No. 9649,
SERGEANT ROBERT MARTINEZ, Shield No. 1369, and
POLICE OFFICERS JOHN DOES #s 1-4 (names and
numbers of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff GABRIEL MALDONADO, by his attorneys, Jacobs & Hazan, PLLC, as and for
his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on November 24, 2018, at approximately 3:00 am he was lawfully present waiting for a taxicab to take him home in the vicinity of Crescent Street and McKinley Avenue, Brooklyn, New York when the individually named defendants unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff, without probable cause or legal justification. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control. Nevertheless, the defendants unlawfully handcuffed plaintiff and transported him to the 75th Precinct against his will whereat he was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours. Additionally, defendants conducted an unlawful strip search of plaintiff while he was at the 75th Precinct and did not recover any illegal drugs, weapons, or contraband pursuant to the strip search. Defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete allegations about plaintiff's conduct and the evidence in defendants' possession to justify their basis for arresting plaintiff and charging him with crimes. After plaintiff was unlawfully detained at the 75th Precinct for many hours, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued through November 25, 2018, at 1:20 am when plaintiff

was arraigned in Kings County Criminal Court. The defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial when they initiated a criminal prosecution against plaintiff without probable cause and based upon false, incomplete, and misleading evidence that they provided to the Kings County District Attorney's Office. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner. At arraignment plaintiff was charged with crimes he did not commit and that defendants lacked probable cause to accuse him of committing. Bail was set at arraignment and plaintiff was unable to post bail. Therefore, plaintiff was remanded into New York City Department of Correction custody and unlawfully detained at the Brooklyn House of Detention until November 28, 2018, at 8:35 pm when bail was posted and he was released from custody. On April 19, 2019, the Kings County District Attorney's Office withdrew the case from the Grand Jury without permitting the Grand Jury to vote because the District Attorney's Office concluded that there was insufficient evidence to indict plaintiff. The District Attorney's Office moved to dismiss and seal all charges brought against plaintiff because there was insufficient evidence to continue with the prosecution and the Court dismissed and sealed all charges brought against plaintiff on April 22, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, strip searched, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff GABRIEL MALDONADO is a resident of the state of New York.
3. Defendant POLICE OFFICER WILLIAM SCHUMACHER, Shield No. 04618, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER WILLIAM SCHUMACHER, Shield No. 04618, is and was at all times relevant herein, assigned to the 75th Precinct.
5. Defendant POLICE OFFICER WILLIAM SCHUMACHER, Shield No. 04618, is being sued in his individual and official capacity.
6. Defendant POLICE OFFICER ANDRE OHARA, Shield No. 9483, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant POLICE OFFICER ANDRE OHARA, Shield No. 9483, was at all times relevant herein, assigned to the 75th Precinct and is currently assigned to the Gun Violence Suppression Division, Zone 1.
8. Defendant POLICE OFFICER ANDRE OHARA, Shield No. 9483, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER ANTHONY WAITE, Shield No. 9649, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER ANTHONY WAITE, Shield No. 9649, was at all times relevant herein, assigned to the 75th Precinct and is currently assigned to the 67th Precinct Detective Squad.

11. Defendant POLICE OFFICER ANTHONY WAITE, Shield No. 9649, is being sued in his individual and official capacity.

12. Defendant SERGEANT ROBERT MARTINEZ, Shield No. 1369 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant SERGEANT ROBERT MARTINEZ, Shield No. 1369, was and is at all times relevant herein, assigned to the 75th Precinct.

14. Defendant SERGEANT ROBERT MARTINEZ, Shield No. 1369, is being sued in his individual and official capacity

15. Defendant New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. New York City Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On or about November 24, 2018, at approximately 3:00 am plaintiff was lawfully present waiting for a taxicab to take him home in the vicinity of Crescent Street and McKinley Avenue, Brooklyn, New York when the individually named defendants unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or any legal justification.

22. Defendants asked plaintiff what he was doing in the area and plaintiff told them that he was waiting for a taxicab.

23. Defendants unlawfully searched plaintiff and did not recover any illegal drugs, weapons or contraband pursuant to the search.

24. Defendants left plaintiff waiting for the taxicab, drove around the block and unlawfully stopped and questioned plaintiff again.

25. The defendants asked plaintiff why he continued to be present at that location and plaintiff did not answer the defendants.

26. Defendants drove away and left plaintiff at the location waiting for the taxicab.

27. Before the taxicab arrived to pick plaintiff up, the defendants unlawfully stopped, questioned, frisked, and searched plaintiff again, without reasonable suspicion, probable cause, or any legal justification.

28. Once again, the defendants did not recover any illegal drugs, weapons or contraband from the possession, custody, or control of plaintiff, pursuant to the search.

29. Defendants allege that they recovered a firearm from a location outside of the possession, custody, or control of plaintiff when they responded to a radio call for "shots fired," and defendants unlawfully handcuffed plaintiff and falsely arrested plaintiff without probable cause or legal justification.

30. Defendants fabricated allegations against plaintiff that he possessed the firearm and communicated the false allegations to the Kings County District Attorney's Office.

31. Defendants falsely arrested plaintiff, without probable cause or legal justification.

32. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

33. At no time relevant herein did plaintiff commit a crime or violate the law, nor did defendants possess objective facts that would lead a reasonable police officer to believe he possessed probable cause to believe plaintiff committed a crime or violated the law.

34. Nevertheless, the defendants unlawfully handcuffed plaintiff and transported him to the 75th Precinct against his will.

35. Defendants unlawfully searched, fingerprinted, photographed, interrogated, and detained plaintiff in a filthy holding cell at the 75th Precinct for many hours.

36. Additionally, defendants conducted an unlawful strip search of plaintiff while he was at the 75th Precinct and did not recover any illegal drugs, weapons, or contraband pursuant to the strip search.

37. At no time relevant herein did defendants allege that they witnessed plaintiff secrete any illegal contraband underneath his clothing and the defendants lacked probable cause to believe he secreted illegal contraband underneath his clothing.

38. Defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete allegations about plaintiff's conduct and the evidence in defendants' possession to justify their basis for arresting plaintiff and charging him with crimes.

39. After plaintiff was unlawfully detained at the 75th Precinct for many hours, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued through November 25, 2018, at 1:20 am when plaintiff was arraigned in Kings County Criminal Court.

40. The defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial when they initiated a criminal prosecution against plaintiff without probable cause and based upon false, incomplete, and misleading evidence that they provided to the Kings County District Attorney's Office.

41. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

42. At arraignment plaintiff was charged with crimes he did not commit and that defendants lacked probable cause to accuse him of committing, including but not limited to Criminal Possession of a Weapon.

43. The Court set bail was set at arraignment based upon the false allegations made against plaintiff by defendants and plaintiff was unable to immediately post bail.

44. Plaintiff was remanded into New York City Department of Corrections custody and unlawfully detained at the Brooklyn House of Detention until November 28, 2018, at 8:35 pm when bail was posted on plaintiff's behalf and plaintiff was released from custody.

45. Plaintiff was required to appear in Kings County Criminal Court on two occasions to address the false criminal charges filed against him.

46. On April 19, 2019, the Kings County District Attorney's Office withdrew the case as it was being presented to the Grand Jury, without permitting the Grand Jury to vote because the District Attorney's Office concluded that there was insufficient evidence to indict plaintiff.

47. The District Attorney's Office moved to dismiss and seal all charges brought against plaintiff because there was insufficient evidence to continue with the prosecution and the Court dismissed and sealed all charges brought against plaintiff on April 22, 2019.

48. Defendants initiated a criminal prosecution against plaintiff without probable cause and provided false, misleading, and incomplete allegations about plaintiff's conduct to the Kings County District Attorney's Office to support and initiate a criminal prosecution against plaintiff.

49. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, strip searched, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

50. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

51. The individually named defendant police officers have significant histories of being disciplined by the NYPD and having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the discipline constituted a "slap on the wrist" and was not sufficient punishment for the misconduct the defendants engaged in.

52. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

53. Even on the occasions where the NYPD determined that defendants engaged in police misconduct, the NYPD disciplined defendants in a manner that was insufficient to address the misconduct engaged in by defendants.

54. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

55. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

56. Given defendants histories of engaging in serious police misconduct toward members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

57. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

58. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

59. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

61. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

68. Defendants lacked probable cause to search plaintiff.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

72. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

74. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Plaintiff was strip searched by defendants without an individualized reasonable suspicion or probable cause that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

80. As a result of the foregoing, plaintiff's Constitutional rights were deprived, and he sustained great emotional injuries.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Malicious Prosecution

83. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

85. Defendants commenced and continued a criminal proceeding against plaintiff.

86. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

87. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

88. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process/ Right to a Fair Trial

90. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 90 with the same force and effect as if fully set forth herein.

91. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

92. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

93. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

94. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

95. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Failure to Intervene

97. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

99. Defendants failed to intervene to prevent the unlawful conduct described herein.

100. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. Plaintiff was unlawfully stopped, questioned, frisked, searched, strip searched, falsely arrested, maliciously prosecuted, denied the right to due process/ right to a fair trial without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

104. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, strip search, falsely arrest, fabricate evidence, maliciously prosecute, and deny members of the public the right to due process without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

105. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

106. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, strip search, false arrest, malicious prosecution, and denial of due process because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, falsely arrest, maliciously prosecute, and deny due process to members of the public when there is no factual basis to suspect the individual has committed a crime.

107. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

108. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City

of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

109. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, falsely arrest, maliciously prosecute, and deny due process to individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests and prosecutions without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

110. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

111. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

112. The City of New York has acted with deliberate indifference to the Fourth, Fifth, and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

113. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

114. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Gabriel Maldonado demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 24, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 24, 2021

/s/
DAVID M. HAZAN